

**In the Supreme Court of Bangladesh
High Court Division
(Criminal Appellate Jurisdiction)**

Present:

Mr. Justice Md. Shohrowardi

Criminal Appeal No. 5535 of 2018

Md. Abed Ali

...Appellant

-Versus-

The State and another

...Respondents

Mr. Subrata Kumar Kunda, Advocate

...For the Appellant

Mr. Abul Kashem Sarker, Advocate

...For respondent No. 2

Mr. S.M Golam Mostofa Tara, DAG with

Mr A. Mannan, AAG with

.....for the State.

Heard on 12.07.2023 and 19.07.2023

Judgment delivered on 20.07.2023

This appeal under Section 410 of the Code of Criminal Procedure, 1898 is directed against the judgment and order dated 12.07.2015 passed by Sessions Judge, Nilphamari in Sessions Case No. 62 of 2014 arising out of C.R. Case No. 266 of 2013 convicting the appellant under Section 138 of the Negotiable Instruments Act, 1881 and sentencing him thereunder to suffer simple imprisonment for 1(one) years and fine of Tk. 57,500.

The prosecution case, in short, is that the accused took a loan of Tk. 57,500 from the complainant and he issued cheque No. 6501016 dated 10.07.2013 drawn on his Current Account No. 0200001543834 maintained with Agrani Bank Limited, Nilphamary Branch for payment of loan amounting to Tk. 57,500. The complainant presented the cheque on 16.09.2013 for encashment which was dishonoured with the remarks “insufficient fund”. After that, the complainant issued a legal notice on

07.10.2013 through registered post requesting him to pay the cheque amount within 30 days. The accused received the notice on 08.10.2013 but he did not pay the cheque amount. Consequently, he filed the complaint petition on 10.11.2013.

After filing the complaint petition, the complainant was examined under section 200 of the Code of Criminal Procedure, 1898 and the learned Magistrate was pleased to take cognizance of the offence against the accused under section 138 of the Negotiable Instruments Act, 1881. During the trial, the complainant examined himself as P.W.1 and the accused was absconding. After concluding the trial, the trial court by impugned judgment and order convicted the accused and sentenced him as stated above.

P.W. 1 Md. Ataur Rahman Hamidi is the complainant. He stated that the accused took a loan from him and issued a cheque on 10.07.2013 for payment of Tk. 57,500 and he presented the cheque on 16.09.2013 for encashment but the same was dishonoured for “insufficient funds”. Thereafter, he issued a legal notice on 07.10.2013 to the accused and he received the same on 08.10.2013 but he did not pay the cheque amount. Consequently, he filed the case on 10.11.2013. P.W. 1 proved the complaint petition as exhibit-1 and his signatures as exhibit-1/1 and 1/2, the cheque dated 10.07.2013 as exhibit-2, the dishonoured slip dated 16.09.2013 as exhibit-2/1, the notice sent through registered post with AD dated 07.10.2013 as exhibit-3 and the acknowledgement receipt as exhibits- 3/1.

The learned Advocate Mr. Subrata Kumar Kunda appearing on behalf of the appellant submits that the appellant deposited the cheque amount i.e. Tk. 57,500 in the trial court and both the appellant and the complainant respondent No. 2 settled the dispute out of Court. He prayed for the acquittal of the appellant.

The learned Advocate Mr. Abul Kashem Sarker appearing on behalf of respondent No. 2 also admitted that both the parties settled the

dispute out of court and the appellant has no objection if complainant respondent No. 2 is allowed to withdraw Tk. 57,500 as deposited by the appellant before filing the appeal.

I have considered the submission of the learned Advocate Mr. Subrata Kumar Kunda who appeared on behalf of the appellant and the learned Advocate Mr. Abul Kashem Sarker who appeared on behalf of respondent No. 2, perused the evidence, impugned judgment and order passed by the trial court and the records.

On perusal of the record, it appears that the accused issued the cheque on 10.07.2013(exhibit-2) for payment of Tk. 57,500 in favour of the complainant and thereafter the said cheque was dishonoured on 16.09.2013 (exhibit-2/1) for insufficient funds and he issued the legal notice on 07.10.2013(exhibit-3). He also proved the acknowledgment receipt as exhibit-3/1 and the complaint petition dated 10.11.2013 as exhibit-1. The accused did not deny the issuance of the said cheque in favour of the complainant but he did not pay the cheque amount to the complainant. Therefore the accused committed the offence under section 138 of the Negotiable Instruments Act, 1881 and the prosecution proved the charge against the accused beyond all reasonable doubt.

The Negotiable Instrument Act, 1881 is a special law and the offence under section 138 of the said Act is not compoundable. Therefore, the settlement made between the parties out of court cannot be accepted.

Considering the gravity of the offence, I am of the view that the ends of justice would be best served if the impugned judgment and order passed by the trial court are modified as under;

The accused is found guilty of the offence under section 138 of the Negotiable Instruments Act, 1881 and he is sentenced to pay a fine of Tk. 57,500.

The complainant respondent No. 2 is entitled to get the cheque amount i.e. 57,500 deposited by the accused before filing the appeal.

In view of the above observation, findings and reasoning, the appeal is disposed of with a modification of the sentence passed by the trial Court.

The trial Court is directed to allow the complainant-respondent No. 2 to withdraw Tk. 57,500 (fifty-seven thousand five hundred) deposited by the accused before filing the appeal.

Send down the lower Court's records at once.